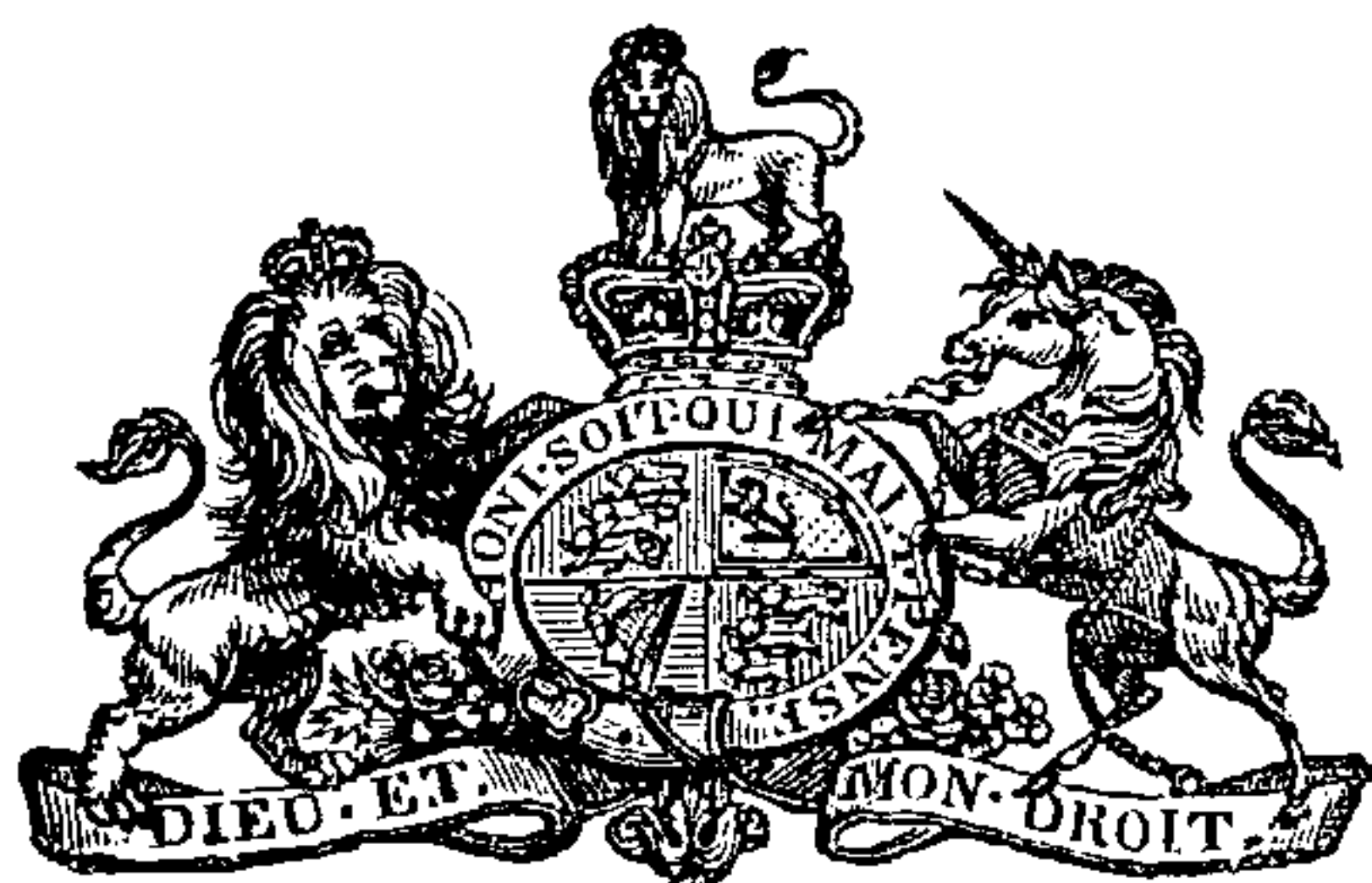




### CHAPTER liii.

An Act to extend the powers of the Trustees of the Presbyterian Church in Ireland in relation to the investment of money and the accepting taking and holding of property and for other purposes.

A.D. 1901.

[2nd July 1901.]

**W**HEREAS it is expedient that the powers of the Trustees of the Presbyterian Church in Ireland (herein-after referred to as "the Trustees") in relation to the investment of trust funds in their hands and to the acceptance taking and holding of property intended for the use or benefit of the Presbyterian Church in Ireland or its members be extended :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :--

1. This Act may be cited as the Irish Presbyterian Church Act 1901. Short title.

2. The Trustees may if authorised so to do by the General Assembly of the Presbyterian Church in Ireland invest the commutation fund and the sustentation fund in the Irish Presbyterian Church Act 1871 respectively mentioned and whether at the time in a state of investment or not in the purchase of fee-farm rents or rentcharges payable out of real estate in Ireland and may also from time to time vary any such investment And the Trustees shall upon the request of the General Assembly and may at the discretion of the Trustees sell all or any of the fee-farm rents and rentcharges purchased by them under the powers of this Act either together or in parcels and either by public auction or private contract and either with or without any special stipulations as to title or evidence or commencement of title or otherwise and may buy in or rescind

Power to invest commutation and sustentation funds in purchase of fee-farm rents and rentcharges.



A.D. 1901. — or vary any contract for sale and resell without being answerable for loss occasioned thereby and may for the purposes aforesaid or any of them execute and do all such assurances and things as they or he shall think fit.

Power to invest all trust funds unless prohibited in like manner as commutation and sustentation funds.

3. The Trustees may invest any trust funds in their hands other than the said commutation and sustentation funds and whether at the time in a state of investment or not in any of the investments in which the Trustees may for the time being be authorised to invest the said commutation and sustentation funds. Provided that nothing in this section shall extend the powers of the Trustees with reference to the investing of any trust funds in respect to which the instrument (if any) creating the trust specifies or limits the investments in which the Trustees may invest such funds.

Extension of Trustees' powers of accepting and holding real and personal property on trust.

4.—(1) The Trustees may if desired so to do by the said General Assembly accept take and hold any real or personal property now or which may at any time hereafter be under the control or in the disposal of the said General Assembly upon such trusts as the said General Assembly may determine.

(2) The Trustees may if authorised so to do by the General Assembly accept or take a transfer of any gift devise or bequest of real or personal property given devised or bequeathed for the endowment or permanent use or benefit of the said Church or any college congregation mission or charity connected therewith or any school in connexion with any congregation of the said General Assembly or under the management of any member of the said Church. And the Trustees shall hold such property so given devised bequeathed or transferred as aforesaid on the trusts declared by or contained in the deed will or other instrument of endowment.

Application of Irish Presbyterian Church Act 1871.

5. All the provisions of the Irish Presbyterian Church Act 1871 shall be construed and shall apply as if the provisions of this Act were incorporated with and formed part of that Act.

Costs.

6. The costs charges and expenses of and incident to preparing applying for obtaining and passing of this Act or otherwise in relation thereto and the carrying into effect the provisions thereof shall be paid by the Trustees.

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